PUNJAB PROTECTION OF WOMEN AGAINST VIOLENCE ACT, 2016

Section-by-section practical guide (Punjab, Pakistan)

Purpose

This is a practical section-by-section guide to the Punjab Protection of Women against Violence Act, 2016 (Act XVI of 2016). It explains what each provision does and how a woman can use it. For filing in court, use the certified official text from Punjab Laws Online or the official Gazette.

The Act creates protection, relief and rehabilitation for women facing violence, including domestic, sexual, psychological, verbal, economic abuse, stalking and cybercrime.

Section 1 - Short title, extent and commencement

The Act applies in Punjab and establishes a system for protection, relief and rehabilitation of women against violence.

Section 2 - Definitions

Defines key terms: aggrieved person, respondent, domestic violence, emotional/psychological/verbal abuse, economic abuse, stalking, cybercrime, Women Protection Officer, court, and related terms. These definitions decide whether a situation falls under the Act.

Section 3 - Women Protection Officers

Government may appoint Women Protection Officers (WPOs). A woman can approach a WPO for help with filing, risk assessment, police coordination, medical help and court support.

Section 4 - Duties of Women Protection Officers

WPOs receive complaints, assess danger, inform women of rights, assist with protection orders, coordinate with police/health/shelter services and maintain confidentiality.

Section 5 - Complaint to Court

An aggrieved woman may apply directly to the court, or through a WPO, for relief under the Act.

Section 6 - Interim orders

Where there is risk of violence, the court may pass immediate interim protection orders before full hearing. Use for urgent threats, eviction risk, or continuing abuse.

Section 7 - Protection orders

Court can restrain the respondent from violence, contact, threats, entering the woman’s workplace/school, or other harmful acts. Breach is punishable.

Section 8 - Residence orders

Court can protect the woman’s right to reside in the shared household, restrain eviction, or direct alternative accommodation.

Section 9 - Monetary orders

Court may order compensation, medical expenses, loss of earnings, maintenance-related relief and other monetary relief.

Section 10 - Custody

The court may make custody-related arrangements consistent with law for protection of the woman and children. Separate Family Court proceedings may also be needed.

Section 11 - Counselling and rehabilitation

Court or WPO may refer parties to counselling, shelter, rehabilitation and support services.

Section 12 - Duties of police and other officials

Police, medical officers and officials must assist, register complaints where applicable, provide medical care and cooperate with protection mechanisms.

Section 13 - Violence Against Women Centres

Integrated VAW Centres provide complaint registration, FIR, medico-legal examination, forensic collection, counselling, legal aid, police facilitation and temporary shelter.

Section 14 - District Women Protection Committees

District committees coordinate implementation, monitor cases and support protection mechanisms.

Section 15 - Powers and functions

Defines powers of committees, WPOs and supporting institutions to implement the Act.

Section 16 - Jurisdiction

Specifies the court with jurisdiction, generally linked to where the woman resides, works, or where violence occurred.

Section 17 - Procedure

Sets out filing, hearing and decision procedure, including notice to respondent and opportunity to be heard.

Section 18 - Power to make interim orders

Reinforces the court's ability to issue urgent interim relief.

Section 19 - Appeals

Provides appeal remedies against orders as prescribed by law.

Section 20 - Service of notices

Governs service of notices and orders on respondents.

Section 21 - Penalty for breach of orders

Breach of protection, residence or monetary orders is punishable; imprisonment up to one year and/or fine between Rs 50,000 and Rs 200,000.

Section 22 - Cognizance of offences

Explains how courts take cognizance of offences under the Act.

Section 23 - Power to make rules

Government may make rules for implementation.

Section 24 - Removal of difficulties

Allows government to address implementation difficulties.

Section 25-31 - Miscellaneous, repeal and transitional provisions

Covers consequential amendments, repeals, savings and transitional arrangements.

How to use this Act

- Ensure immediate safety; call 1043 or Police 15 if in danger.
- Collect evidence: messages, injuries, medical reports, threats, witnesses, financial documents.
- Approach a Women Protection Officer, VAW Centre, or file directly in the competent court.
- Request interim protection immediately if there is danger.
- If the respondent violates an order, report it and seek enforcement/penal action.